

A Critical Discourse Analysis of Risalat Al-Huquq of Imam Ali Al-Sajjad (p.b.u.h.)

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Abstract

This study applies the field Critical Discourse Analysis (henceforth, CDA) for the analysis of Risalat Al-Huquq "Treatise on Rights" of Imam Ali Al-Sajjad (p.b.u.h.) (henceforth, RH). It is an initial effort to come across the following aims: (1) Describing the linguistic representation of the text under study. (2) Interpreting the text under study by highlighting four interpretative procedures, namely, situational context, intertextuality, speech acts, and schemata. (3) Explaining the ideologies that are conveyed in the text under study. In order to accomplish these aims, it is hypothesised that: (1) the linguistic representation reveals the constituting ideologies of the text under study. (2) The observed interpretative procedures show that: (a) The purpose behind the construction of RH is an efficacious one. (b) The texts that are reflected in the text under study are mostly concerned with the issue of rights whether directly or indirectly. (c) Having an instructive nature, the text under study figures the use of directive speech acts in addition to other types of speech acts which accord with its minor concerns. (d) RH has a didactic form. (3) RH's ideology is multidimensional attentive to moral, social considerations and a collection of other considerations. To investigate these hypotheses the next procedures are adopted: (1) Presenting a brief account of CDA. (2) Discussing the model adopted. (3) Analysing the text selected. Finally, the results of the analysis verify the hypotheses set for the study.

Keywords: rights, critical discourse analysis, intertextuality, situational context, transitivity, modality, speech acts, schemata.

الخلاصة

تطبق هذه الدراسة حقل تحليل الخطاب النقدي لتحليل رسالة الحقوق للأمام علي السجاد (عليه السلام)، تمثل هذه الدراسة محاولة لتحقيق الاهداف التالية: (1) وصف للصورة اللغوية للنص المحلل، (2) تفسير النص المحلل من خلال ابراز اربع اجراءات تفسيرية، وهي حالة السياق والتناص والافعال الكلامية والمخطط، (3) توضيح الايديولوجيات المنقولة في النص المحلل، حتى يتم تنفيذ هذه الاهداف، افترض الاتي: (1) الصورة اللغوية تكشف الايديولوجيات التشكيلية للنص المحلل، (2) الاجراءات التفسيرية الملاحظة تكشف الاتي: (أ) الغرض وراء وضع رسالة الحقوق هو هدف تأثيري، (ب) النصوص التي انعكست في النص المحلل كانت غالبا مهتمة بمسألة الحقوق بصورة مباشرة او غير مباشرة، (ج) لان النص المحلل ذو طبيعة تعليمية اظهر استخدام للأفعال الكلامية التوجيهية اضافة الى انواع اخرى من الافعال الكلامية التي تتفق مع الاعتبارات الثانوية لرسالة الحقوق. (د) رسالة الحقوق ذات هيكل ارشادي، (3) ايديولوجية رسالة الحقوق متعددة الابعاد متيقظة الى الاهتمامات الاخلاقية والاجتماعية اضافة الى مجموعة من الاعتبارات اخرى، لتقصي هذه الفرضيات، الدراسة تبنت الاجراءات التالية: (1) عرض وصف مختصر لتحليل الخطاب النقدي المقارن، (2) مناقشة للنموذج المتبنى، (3) تحليل النص المحدد، في النهاية، نتائج التحليل اثبتت الفرضيات الموضوعة.

الكلمات مفتاحية: الحقوق، تحليل الخطاب النقدي، التناص، حالة السياق، لا دوامية، المشروطية، الافعال الكلامية، المخطط.

1. Introduction

In view of the dominant secular and non-human acts in our society, calling for rights and appealing to them has become an undeniable affair. Therefore, there has been an excessive importance to bridge the gap between the idea, cultivation, and conventions of human rights on the one hand and their realistic application on the other. This could be at hand by analysing the selected text which is Risalat Al-Huquq by Imam Ali Al-Sajjad (p.b.u.h.) using an analytical framework of Critical Discourse Analysis. CDA is defined by Scollon & Scollon (2001: 140) as a plan for socially and critically analysing discourse as a way to reach to some sense of social change.

As far as the researcher knows RH has not been dealt with linguistically using CDA. Thus this study tries to find answers to these questions: (1) How is the text being represented linguistically? (2) How can RH be interpreted with respect to four interpretative procedures, namely, situational context, intertextuality, speech acts, and schemata? (3) What are the ideologies that govern RH?

The following aims are to be achieved: (1) Describing the linguistic representation of RH. (2) Interpreting RH by highlighting four interpretative procedures, namely, situational context, intertextuality, speech acts, and schemata. (3) Explaining the ideologies upon which RH is based.

Consequently, it hypothesizes that: (1) the linguistic representation reveals the constituting ideologies of RH. (2) The observed interpretative procedures show that: (a) Concerning situational context, the purpose behind the construction of RH is an efficacious one. (b) Concerning intertextuality, the types of texts that are reflected in RH are primarily concerned with the issue of rights. (c) With respect to speech acts, having an instructive nature, RH figures the use of directive speech acts in addition to other types of speech acts which accord with its minor concerns. (d) in regard to schemata, RH has a didactic form. (3) RH's ideology is multidimensional attentive to moral, social, and a collection of other considerations like economic and juristic perspectives.

The following procedures are embraced in this study to fulfil its aims and verify its hypotheses: (1) Presenting a brief account of CDA. (2) Discussing the model adopted. (3) Analysing the text selected adopting Fairclough (1989) *Language and Power* and model which comprises three stages, namely, description, interpretation, and explanation.

2. History of CDA: Origin and Evolution

CDA, according to Van Dijk (2008: 85), can be considered as a development of Discourse Analysis (DA, henceforth). Its emergence can be traced back to the Social Theory in the early 1970s and Systemic Functional Linguistics in the early 1970s as well. Its tenets can also be found in the critical theory which focuses on the language of discourse that begun with the Critical Linguistics (CL, henceforth) that has come into existence at late 1970s.

CDA can be regarded as a response to the prevailing formal models of the 1960s, that is DA. From one point of view, DA has been described by Van Dijk (ibid.) as "asocial" or "uncritical" as it focuses on the linguistic devices, grammatical cohesion, and semantic principles that connect parts into wholes. On the other hand, CDA coincides with critical

developments in psychology, sociolinguistics, and some social sciences such as politics and philosophy, some of which date back to the early 1970s (Van Dijk, *ibid.*).

It draws from Social Theory and contributions from social theorists like: Marx, Gramsci, Althusser, and Foucault who directed CDA's regards to examine power relations as well as ideologies which are involved in discourse. Blommaert (2005) points out that each one of those socialists has a point of influence on CDA, for example, notion like 'ideology', 'orders of discourse', 'hegemony', and others (p.: 27).

Blommaert and Bulcaen (2000: 454) point out that CDA embraces some analytical components which are subsequent to systemic-functional analyses of, namely, nominalization, mood, transitivity, agency, and register. The principle of transitivity, according to Teo (2000: 25), "can be expressed simply in terms of 'who does what to whom'". In addition to the previous questions there is another one which is concerned with investigating the circumstances in which an event takes place, namely, 'in what conditions'.

Concerning CL, O'Halloran (2000:13) points out that, over years, CL has morphed into CDA through emphasising indications of ideological as well as cultural meaning of discourse. He also mentions that CDA and CL agree in exposing ideologies, however, CDA lays much attention on explicating their social circumstances.

In sum, CDA is a cross discipline approach within Applied Linguistics that applies linguistic studies for non-linguistic ends, such as social or political ones. It could be considered as a response to the conventional discourse analysis of the 1960s and 1970s which is classified as uncritical since they are purely descriptive. In addition, it draws from social theory. Furthermore, it has emerged with an influence from the linguistic theories of Halliday. Finally, it is seen as a developed form of CL.

The evolution of CDA can be seen through its practitioners' main approaches; namely, those proposed by Fairclough, Van Dijk, and Wodak which are going to be reviewed in the next subsection.

3. Approaches of CDA

Notwithstanding the variation in the standpoints and procedures espoused by CDA, it is possible to circumscribe three broad approaches: Fairclough's dialectical-relational approach, Wodak's discourse-historical approach, and Van Dijk's socio-cognitive approach. Wodak (1989:137) uses language of political nations to analyse their gender discrimination. Fairclough (1992: 8) employs a multidimensional method for the observation of social changes. on social conflict and its linguistic manifestations in discourses of dominance, difference and resistance. Furthermore, Van Dijk (2001:26) joins CDA with cognition to reveal the ideological structures which are covert in humans' remembrance.

4. The Model Adopted

The adopted model of this study is of Fairclough (1989) *Language and Power*. This model comprises of three stages, namely, description, interpretation, and explanation. It is selected among the other three models due to its linguistic orientation with comparison to Van Dijk's cognitively oriented approach and Wodak's historical approach.

4.1 Description Stage

This stage handles textual analysis which includes the possibility of investigating many textual components. However, there is no need to examine all the textual components. Fairclough (*ibid.*: 14) states that "textual analysis [description stage] is ... selective". Insights of three levels of vocabulary, grammar, and textual structures are needed here for maintaining the description or textual stage of analysis.

4.1.1 Vocabulary

The first component of the text to be examined in the text under study is vocabulary. Its analysis is needed to figure out the ideologically contested words chosen to make up RH and to convey their main ideology. Ideologically contested words, which are called also challenged or disputed words, are described by Fairclough (ibid.: 114) as being "the focus of ideological struggle." In order to find out the frequency of occurrence of their prevailing expressions, the dominating classification schemes in each of the two texts under study are going to be investigated.

4.1.2 Grammar

Two grammatical features are selected for the analysis of the two texts under study. They are transitivity and modality which are mainly concerned with the grammar of the clause.

4.1.2.1 Transitivity

The transitivity analysis in this study will be carried out by following Halliday and Matthiessen (2014) who distinguish three experiential elements that make up the transitivity structure of a clause: process (what), participant (who and whom), and circumstance (in what condition). Participant and process are central whereas circumstance is peripheral. It is only the central elements which are going to be investigated in the texts under study with the limitation to the frequency of the processes in which 'man' serves a role.

The process types, as mentioned by Halliday & Matthiessen (2014: 300), are six and they are divided into two types, namely, principal and subsidiary. The principal processes are 'material', 'mental', and 'relational' whereas the subsidiary ones are 'behavioural', 'verbal', and 'existential'.

Table 1: Major Process types, their meanings and characteristic participants adopted from Halliday & Matthiessen (2014: 311)

Process type	Category meaning	Participants, directly involved	Participants, obliquely involved
Material: Action Event	'doing' 'doing' 'happening'	Actor, Goal	Recipient, Client; Scope; Initiator; Attribute
Behavioural	'behaving'	Behaver	Behaviour
Mental: Perception Cognition Desideration Emotion	'sensing' 'seeing' 'thinking' 'wanting' 'feeling'	Senser, Phenomenon	Inducer
Verbal	'saying'	Sayer, Target	Receiver; Verbiage
Relational: Attribution Identification	'being' 'attributing' 'identifying'	Carrier, Attribute Identified, Identifier; Token, Value	Attributor, Beneficiary Assigner
Existential	'existing'	Existent	

The above table will be followed in the transitivity analysis of the text under study in the next chapter for identifying the processes that 'man' participates in and the roles he attends in each.

4.1.2.2 Modality

Modality constitutes the second component in the model adopted. It is concerned with the extent to which producers reflect their relationship with other participants in the discourse (Fairclough, 1992: 142).

Modality is carried out by Quirk et al. (1985: 219) through investigating the meanings of modal verbs. They divide the constraining factors of meaning into: those that involve some kind of intrinsic peoples' predominance, namely, 'permission', 'obligation', and 'volition'; and those that involve peoples' decision, namely, 'possibility', 'necessity' and 'prediction'.

For the analysis of modality in RH, Khalil (1999) will be followed who in his turn depends on Quirk et al. (1985) in presenting the Arabic equivalents of the English modal verbs and showing the meanings they convey. The meanings of modals used in the text under study are going to be investigated to find out their frequency and percentage. The following table presents the component of modality with respect to the Arabic language.

Table 2: The meanings of modals and the modal verbs in Arabic according to Khalil (1999: 215)

No .	Meanings of Modals	English Modal verbs	Arabic Equivalents
1.	Permission	can, could, may, might	يستطيع, يمكن, بإمكان
2.	Possibility(ability)	can, could, may, might	يمكن, يستطيع, يقدر, قادر, قد, ربما, من الممكن, بإمكان
3.	Obligation	must, need, ought to, should	ينبغي, يلزم, يجب, عليك ان, لابد, لا داعي, لا يلزم
4.	Necessity	must, need, have to	لابد, لا شك, من المستحيل, استبعد, لا يعقل
5.	Volition	will, would, shall	لابد, لاشك س, سوف
6.	Prediction	will, would, shall	س, سوف

4.2 Interpretation Stage

This stage is placed secondly in the procedure of analysis due to the fact that it is an outcome that is arrived at, according to Fairclough (1989: 11), throughout a procedure of correspondence between the linguistic analysis of the utterance (in description stage) with some mental structures one has in his mind, these mental structures are the ideologies followed in the formulation of a discourse.

In this stage, focus is laid upon situational context, intertextuality, speech acts, and schemata which four concepts that link a text to context. As such, interpretation of a discourse will be carried out by interpreting text as well as context throughout the following components:

4.2.1 Situational Context

The first domain in the interpretation stage is the situational context which is concerned with introducing the contents of the situation including its topic and purpose; the subjects of the situation; and the relations between participants in the discourse.

4.2.2. Intertextuality

The second component within the interpretation stage in the present model is intertextuality. which is defined by Fairclough (1992: 84) as the characteristic in which texts use some allusions from other texts. The need for such analysis is due to its importance in revealing how to make use of earlier texts for obtaining new ones. In other words, it shows the diachronic relationship of a specific text with previous either similar or related ones.

Fairclough (ibid.: 10) distinguishes between ‘**manifest Intertextuality**’ and ‘**constitutive intertextuality**’. The first indicates the clearly expressed availability of other texts. The second represents "the formation of a text from an arrangement of specific text types.

4.2.3. Speech Acts

The procedure to be followed in analysing the text under study with respect to their speech acts (henceforth, SAs) is to search for the main SAs as well as the auxiliary SAs used. This will be achieved by following an eclectic model which is made up of Searle’s (1979: 12-17) classification of main SAs and Van Dijk’s (1977a,b) in Al-Khaza’li (2009: 29-39) classification of auxiliary SAs, as in figure (1):

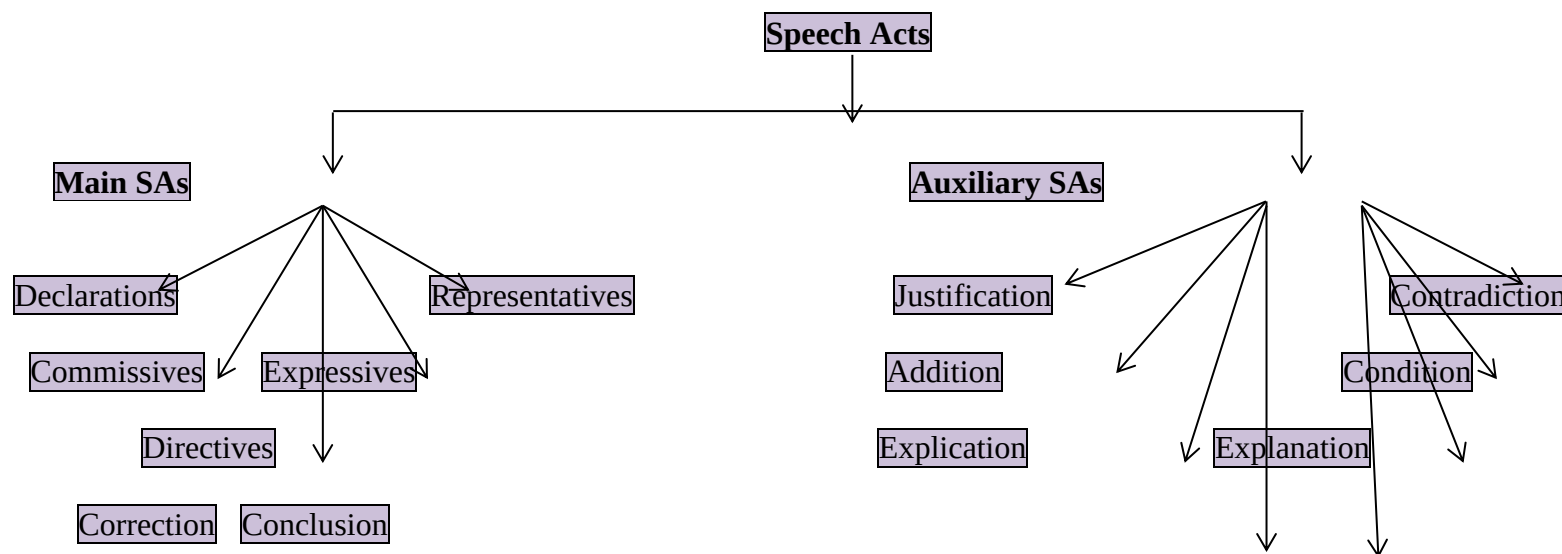


Figure (1): Eclectic model of speech acts according to Searle (1979) and Van Dijk (1977a,b)

4.2.4. Schemata

Schemata or the global discourse forms, as pointed out by Van Dijk (1998: 207), are systematised by some conventional categories, such as foreword and a concluding remark, opening and closing, etc.

Similar to other formal discourse structures, Van Dijk (ibid.) asserts that schemata might give hints for the relevance and connections between text's segments. Thus, the investigation of schemata has a chief purpose in the study of RH. It gives some insight into the ideological viewpoints of authors since each segment has a function in the text as a whole.

4.3 Explanation

The third stage of analysis in this model is explanation. Fairclough (1989: 146) points out that explanation is two-dimensional depending on the focus of the discourse, whether it is centred upon the social effects of discourse or on its social determinants. Explanation in this study will be devoted to the ideologies embraced in RH which in their turn reflect the impact of social determinants on it, further, they give it the needed social, political, religious, and a number of other effects.

It is necessary to mention that the text will be dealt with originally but the translation of each example will also be given depending on Peiravi & Morgan (2002). In addition, there will be given some examples from the Holy Quran provided for supporting the analysis. The translation of Quranic verses will be given based on Ali (1987).

The following is the model to be followed in the analysis of the text under study:

Critical Discourse Analysis (CDA)

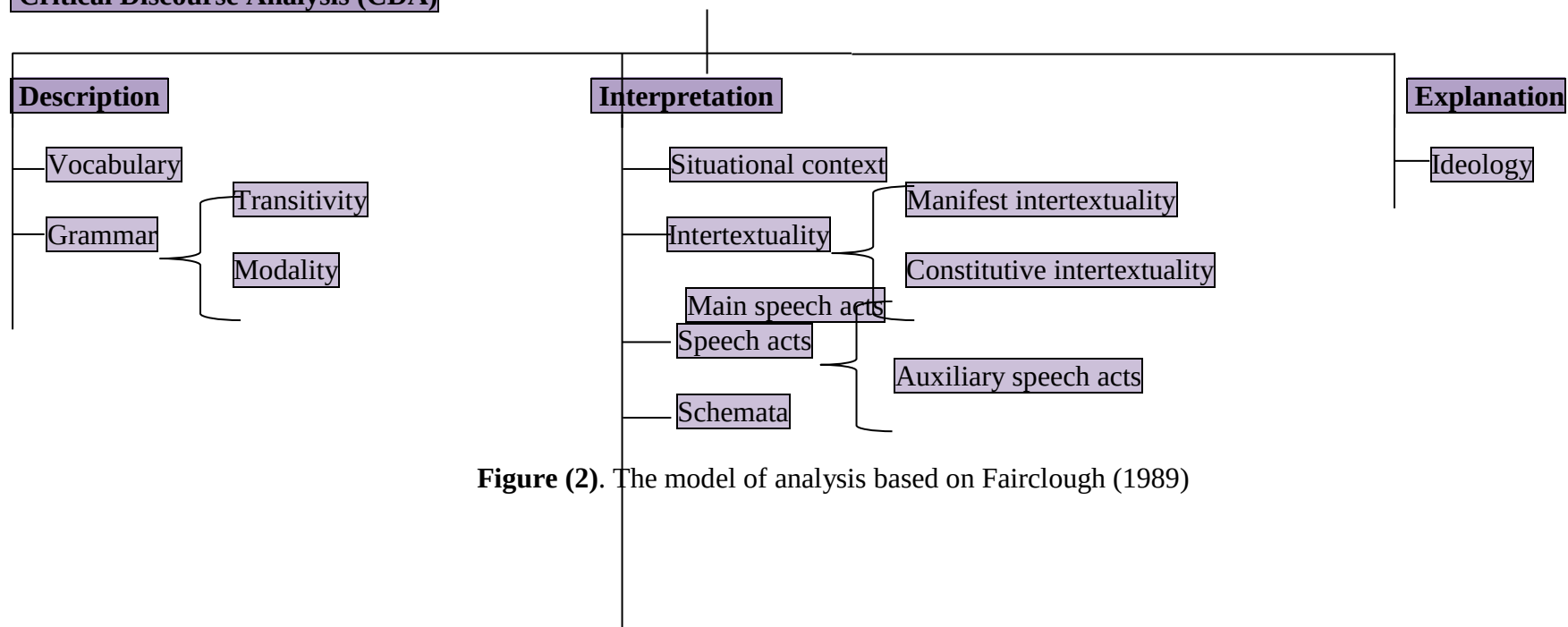


Figure (2). The model of analysis based on Fairclough (1989)

5. Data Analysis

5.1 Description Stage

This part of analysis is devoted to the analysis of RH through examining its vocabulary, grammar, and textual structures as follows:

5.1.1 Vocabulary

Generally speaking, religion and especially Islam constitutes the ideology adopted in the text under study here, namely, RH. This has been indicated through references to Allah, references to Islamic rituals, mentions to the Quranic verses, and citations of the Prophet Mohammed's (p.b.u.h.) traditions.

5.1.1.1. References to Allah (Glorified and exalted be He)

Allah has been mentioned repeatedly in RH either alone or within expressions as those mentioned in the following table:

Table 3: Frequency and percentage of the occurrence of references to Allah

No.	Allah references	Frequency	Percentage %
1.	الله – Allah	67	56.8 %
2.	رب - Allah	13	11 %
3.	لا قوة الا بالله - there is no power but in God	32	27.1 %
4.	ولا حول ولا قوة الا بالله - there is no power nor any strength but in God	6	5.1 %
Totals		118	100

Table (3) shows that the expression of Allah 'الله', and its derivations by Allah 'بالله' and for Allah 'لله', can be considered the most frequent all over the whole text. 'الله' has been used (67) times making (56.8 %) of the whole percentage.

The next frequent expression is (لا قوة الا بالله) - there is no power but in God; it has been used 32 times making (%27.1). It occurs at the end of most of the rights. Less frequent are expressions: (رب) God and its derivations, (ربك) your Lord and (ربه) his Lord; and (لا حول ولا قوة الا بالله) and there is no power nor any strength but in God making (%11) and (%5.1), respectively.

5.1.1.2 References to Islamic Rituals

All of the rights of deeds, which constitute five out of fifty rights, represent the Islamic rituals. They include: praying, fasting, pilgrimage, charity, and offering. Inclusion of such rights enhances the religious ideology adopted in presenting rights. In addition to that, it reveals two distinctive features of TR. The first of which is that this text is not interested only in presenting rights; rather, rights of deeds which imply humans' duties. Second, RH does not stop at introducing human rights; rather, it proceeds in announcing other rights among which are rights of deeds. Third, they are humans not necessarily only Muslims who can be addressed here since in the preface As-Sajjad (p.b.u.h.) after mentioning these five rights, he adds to them rights of deeds which are generally attached to all humans.

5.1.1.3 Mentions to Quranic Verses

Along the text, there are instances in which the Holy Quran is cited either explicitly, through using specific verses, or implicitly, through deriving its meanings or some Qur'anic expressions. Explicit citations are like the one mentioned in the right of him who wrongs you. Furthermore, an instance of the implicit reference to Quranic verses is found in the right of the mother when Al-Sajjad (p.b.u.h.) describes her kind-hearted treatment to her child. These meanings and expressions are actually found in the Holy Quran:

"إِنَّ لَكَ أَلَّا تَجُوعَ فِيهَا وَلَا تَعْرَى (118) وَأَنَّكَ لَا تَظْمَأُ فِيهَا وَلَا تَصْحَى (119)"

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"There is therein [enough provision] for thee not to go hungry nor to go Naked, (118) nor to suffer from thirst, nor from the sun's heat. (119)." [The Holy Quran Taha 20: 118-119]

It is clear that the previous example is based on a verse in the Holy Quran in which Allah describes Heaven for Adam in sura Taha, verses (118-119). By saying so, Al-Sajjad (p.b.u.h.) implies that the mother tries her best for making her son's life as good as Heaven. Such references entail Al Imam's reliance on Quran in conveying his ideas and supporting them. Furthermore, they add to the religious ideology followed in this text.

5.1.1.4 Citations of the Prophet Mohammed's Traditions

Similar to the purpose of citing Quranic verses, there are some instances in which As-Sajjad (p.b.u.h.) uses the Prophet Mohammed's traditions. Among those is used in the rights of fasting and creditor. For example

1. فَأَنَّ رَسُولَ اللَّهِ صَلَّى اللَّهُ عَلَيْهِ وَآلِهِ وَسَلَّمَ – قَالَ – "مَطْلُ الْغَنِيِّ ظُلْمٌ".

1. The Prophet, may God's peace be upon him and his household, said: "procrastination is oppression for the rich."

5.1.2 Grammar

This level of analysis embraces two parts; the first one is concerned with transitivity whereas the second is concerned with modality.

5.1.2.1 Transitivity

The clauses, along the whole text under study, in which 'man' or the addressee serves as a participant, whether directly or indirectly involved, are going to be investigated to find out the major role 'man' occupies. The results of this investigation are handled in table (4) below:

Table 4: Transitivity analysis of RH according to Halliday & Matthiessen (2014), namely, the frequency and percentage of occurrence of the processes in which 'man' participates.

No.	Process types		Participants		Frequency	Percentage %
1.	Material		Directly involved	Actor Goal	108 20	45.96 % 8.51 %
			Obliquely involved	Recipient Client	4 1	1.7 % 0.43 %
2.	Mental		Directly involved	Senser	51	21.7 %
3.	Verbal		Directly involved	Sayer	22	9.36 %
3.	Relational	Attributive	Directly involved	Carrier	16	6.8 %
			Obliquely involved	Attributor	4	1.7 %
		Identifying	Directly involved	Token	6	2.55 %
			Obliquely involved	Assigner	2	0.85 %
4.	Existential		Directly involved	Existent	1	0.43 %
Totals					235	100

Table (4) shows that the roles occupied by 'man' throughout the text are (235). These roles are distributed among the major processes that are: relational, material, and mental in addition to two of the secondary processes: verbal and existential. The prevailing role has been that of an 'Actor', a direct participant in material process, which constitutes (108) out of (235) making (45.96 %). This in fact highlights the importance of 'man' and his doing in the preservation as well as the fulfilment of the rights mentioned in RH.

Next in frequency is the role of a 'Senser', a direct participant in mental process, which occurs (51) times making (21.7 %). In mental processes there are four types: perception, cognition, desideration, and emotion all of which are used. The most dominating one is cognition mainly through the use of the verb 'تعلم', 'know' because As-Sajjad (p.b.u.h) regards man's acquaintance of these rights as the first step in their maintenance. That's why this verb begins fifteen of the rights as in the following example:

2. فَحَقُّ أُمِّكَ: فَإِنَّ تَعْلَمَ أَنَّهَا حَمَلَتْكَ حَيْثُ لَا يَحْمِلُ أَحَدٌ أَحَدًا.

2. Then the right of your mother is that you should **know** that she carried you where no one carries anyone.

The third and fourth frequent roles are: 'Sayer' and 'Goal' which are used (22) and (20) times making (9.36 %) and (8.51 %) respectively. The frequency of the role of Sayer is due to Al-Sajjad's (p.b.u.h.) focus on the man's showing gratitude towards Allah and others since one of the benefits of that is the continuity of kindness from Allah and others as well. Therefore, (13) out of these (22) are verbs of thanking: (تحمد, تشكر) as, for example, that in the right of adviser:

3. فَإِذَا وَافَقَكَ حِمْدُ اللَّهِ.

3. And if it was appropriate for you, you should **thank** God for it.

Regarding the role of 'Goal', its frequency can be linked to the fact that in some of the rights 'man' has been the goal of impact of others. Focusing on the importance of actors in these cases, all of them have been in the active voice.

These uses (i.e. of Sayer and Goal) although not having high frequent, yet they are so if compared with the other following cases. The less frequent roles are: Carrier making (6.8 %), Token making (2.55 %), Recipient making (1.7 %), Attributor making (1.7 %), Assigner making (0.85 %), Existential making (0.43 %), and Client making (0.43 %) frequencies of occurrence.

Depending on the findings, 'man' occupies the role of a direct participant in (224) times making (95.32 %) out of the total number of participations which is (235) since there are only (11) indirect participations making (4.68 %).

5.1.2.2 Modality

For analysing modality in RH, Khalil (1999: 215-229) will be followed, as pointed out previously. While modal meanings are realised by distinct modal verbs in English, in Arabic, they are realised by lexical verbs like, (can) يستطيع; phrases like, (should) من الواجب; and particles like, (may) قد (Khalil, ibid.). Table (7) shows the findings of modality analysis along the whole text of TR.

Table 5: Modality analysis of RH according to Khalil (1999).

No.	Meanings of modals	Modal verbs	Frequency		Percentage %
1.	Possibility (ability)	(can) يقدر	3	4	36.4 %
		(could) ان امكن	1		
2.	Necessity	(must) لابد	1		9 %
3.	Obligation	(must) يلزم	4	6	54.6 %
		(should) يجب	2		
Totals			11		100

Table (5) shows that modality has been used, (11) times, in the text under study. These uses are distributed among only three modal meanings, namely, **possibility**, **necessity**, and **obligation**. The most frequent of them is **obligation** which has been used (6) times to make about (%54.6). This meaning is conveyed through the use of two lexical verbs: (must) يلزم and (should) يجب. The domination of this meaning indicates the authority of As-Sajjad (p.b.u.h.) through which he transfers his speech and the importance of the points emphasised through the use of such meanings. It has occurred in many instances such as in the right of the companion and in the concluding remark. The following is an example from the concluding remark:

4. يَجِبُ عَلَيْكَ رِعَايَتُهَا وَالْعَمَلُ فِي تَأْدِيتِهَا

4. *It is incumbent upon you to honour them and exert all efforts to fulfil them.*

Possibility or ability meaning is the second in frequency which has been used (4) times making (36.4 %) frequency of occurrence. (can) يقدر, (could) ان امكن are the expressions used for performing this meaning as in the right of him who treats you kindly.

The last and less frequent meaning of modality used here is **volition** or **necessity**. It is shown through the use of the expression (must) لابد in the right of the wife.

5.2 Interpretation Stage

After dealing with the linguistic features of the text, it is time to analyse it with respect to the second stage in the procedure of analysis, interpretation through investigating four components that are: situational context, intertextuality, SAs, and schemata.

5.2.1 Situational Context

The activity type to which RH belongs is that of constitutions. It is so since it ingathers moral, social, political, and many other matters that govern man's life. Concerning the topics which are constituted in these activities, they are variant and they include mainly rights that are incumbent upon humans. They can be abbreviated to seven groups: rights of God, the self, deeds, leaders, subjects, kin relatives, and rights of others. The purpose of presenting these rights is to make man aware of his rights and duties and as a call for their preservation.

In addition, the social identities of the participants that govern this discourse are two. Al-Sajjad (p.b.u.h.) is the one who resembles the addresser and the addressees who can be all human beings if the focus is put only upon the idea of rights or those

who are supposed to be Muslims if emphasis is put upon the instances of the citations of Islamic religion.

5.2.2 Intertextuality

Examples of manifest intertextuality are like referring to Qura'nic verses as in the right of him who wrongs you. Another example of manifest intertextuality is when mentioning traditions of Prophet Mohammed like that in the right of non-Muslim subjects under sharia law. A further instance is when Al-Sajjad (p.b.u.h.) in the rights of him who seeks your advice and him whose advice you seek resorts to Imam Ali's (p.b.u.h.) saying when he stresses the importance of consultation.

Constitutive intertextuality denotes the texts that share with the current one their overall structure and the way they appear in it. In fact, the form in which this text is put, that is starting with enumerating rights; then, stating them in detail; and finally, ending with the conclusion, has no similar preceding sample. Rather, this method has been later assigned to the school of Gestalt. This word is used to denote the way in which something is "put together." Its usual translations are "form" and "shape". This word is often interpreted in psychology as "configuration" ("Gestalt Psychology" 2016: Para. 1). As such RH is based upon an educational and psychological approach that enables the receiver to know the exhaustive unity of the topic; then, he speculates the partial details one by one.

5.2.3 Speech Acts

For analysing RH with respect to its main and auxiliary SAs, Searle's (1979) five groups of main SAs and Van Dijk's (1977) eight auxiliary SAs will be followed, as what is done with UDHR.

5.2.3.1 Main Speech Acts

Four out of the five types of SAs show occurrences in TR. They are as follow: first, for **declaration** SAs, examples (23) and (24) indicate indirect SAs that declare the starting point at the beginning in the preface and the finalisation the end in the conclusion of the treatise. Second, **representative** SAs are used in the right of your mother when Al-Sajjad (p.b.u.h.) is reporting her sacrifice. Third, the addresser As-Sajjad (p.b.u.h.) expresses his gratitude once towards Allah indirectly at the end of the text in an **expressive** SA of thanking. Fourth, four **directive** SAs are used, namely, command, prohibition, advice, and warning. Examples of two of them, command and warning in the rights of creed and slaves, are the following, respectively:

5. وانصرهم جميعا بنصرتك.

5. And back all of them up with your support.

6. و لا تكلفه ما لا يُطيق.

6. And do not burden him with what he cannot withstand.

The latter might be reworded as 'I warn you not to burden him...' Al-Sajjad (p.b.u.h.), in presenting rights, has concentrated on edifying man about what to do and what to avoid for the sake of guaranteeing his preservation of these rights. As such, this justifies the direct and enormous use of directives.

To conclude, it is clear now that out of the five main SAs four types have been used in this text, namely, declaration, representative, expressive, and directive. In addition, these uses alternate between direct and indirect instances serving the purpose of the treatise that is declaring the rights which are incumbent upon man and instructing him by showing the recommended way of well-behaving.

5.2.3.2 Auxiliary Speech Acts

In addition to the main SAs, As-Sajjad (p.b.u.h.) has tended to use some auxiliary SAs whose presence serves a role in the subordination of the main SAs. The

auxiliary SAs which have been used here are: **explanation, justification, condition,** and **addition**. Example of one of them, condition auxiliary SAs is the following:

7. ولا تنخر حلمك عنه إذا جهل عليك.

7. And do not lose your temper when he behaves out of ignorance with you.

Uses of these SAs indicate that RH is made up of a series of SAs that supports each one the other to reach to this interconnected text.

5.2.4 Schema of RH

The schema of RH is similar to that of a narrative essay as it consists of three parts: introduction, or the preface; body, or the 50 rights; and conclusion. These three parts are intentionally put in this order since each has a purpose which it conveys in the position it occupies. RH is put in such a way that the whole text could be linked altogether. The large number of rights introduced in this text is treated through being indexed in the preface and their number being mentioned in the conclusion. As such, the preface represents the scope of the text, in which the major types of rights along with their subdivisions are included. Rights, generally speaking, are put orderly. They are classified vertically and horizontally. They are vertically arranged by starting from the supreme obligatory which is God's right to the least which is the right of those under the protection of Islam. Horizontally, they are grouped in major types which are further classified into subtypes.

It is clear that the rights are almost equally divided into groups. In addition, everyone or thing with whom or which man gets in contact is included. This can be justified to the fact that RH can be considered as a constitution for all humans in their lives since no single corner of life is missed whether religious, social, political, moral, or even economic.

Rights in RH, in addition to being ordered purposefully, are linked to each other. In other words, they are duties that are incumbent upon man, as indicated in the beginning of the preface, that the preservation of each leads to the next or the fulfilment of each depends on the fulfilment of the preceding one. If one starts with the first and the supreme right, Allah's right, which is to obey Allah and consequently follow His guidance which requires fulfilling the duties set towards mans' organs and activities since they govern his affinity to Allah. These activities or actions can only be correct if man observes the rights of Allah's creatures as they form the context within which these actions occur.

5.3 Explanation Stage

Explaining RH requires much attention to be paid for the ideology that makes it. By ideology, the definition mentioned in chapter one, the integrated assertions, theories and aims that constitute a sociopolitical program, is proposed. The ideology of RH is multidimensional. It could be observed though examining the rights chosen in this text since these choices reflect the ideology intended. Rights are presented ideologically through a number of perspectives some of which are: religious, political, moral, social, economic, or juristic. Generally speaking, religious and moral attitudes or dimensions of RH, in addition to being associated to specific rights mentioned in it, are, in fact, overriding all over the text. In the matter of religious dimension, the fact that these rights are for God incumbent upon man is asserted in the preface, from the first sentence in the text, and being repeatedly emphasised by the use of expressions that affirms that man needs to seek God's assistance for the reservation of these rights.

This actually uncovers the fact that these rights have exhaustive and unceasing nature since they are adhering to man. The clear idea that rights are endowed by God is connected to the fact that man could be seen as their giver and taker. Being the addressee in all of these rights, he represents the one responsible for preserving them. As to the moral dimension, rights are for the most of their part emphasising the right way of behaving while dealing with others. This attitude is applicable to all of the rights mentioned.

Before dealing with the dimensions of the ideology of RH, it is significant to elucidate two points, both of which are concerned with the implication of the word 'rights' intended here. The first is that rights in this text are not limited to human rights; rather, they exceed them to include rights of God, body organs, deeds, and others. Second, rights are to be seen as human beings' duties towards their Creator, themselves, their deeds, and society or other people with whom they are in contact. Likewise, they are based on the idea that someone's right is someone's else duty so, as an example, when talking about the right of teacher, it is the pupil who is addressed and vice versa. This applies to the whole text.

5.3.1 Religious Dimension of RH

The religious dimension of the RH is clear and is realized in many instances. The first and most important realization is when highlighting the fact that God (Glorified and Exalted Be He) is the centre of these rights since the Imam has restricted all the rights to the divine legislation as is mentioned in example (38) above as well as when saying:

8. ما اوجبه لنفسه تبارك وتعالى

8. *What he has made incumbent upon you for Himself -the Blessed and Exalted-*

The religion represented in this text, through referring to God and some religious deeds and ethics, is another realisation. God is referenced almost at the end of each right to indicate that the fulfilment of these rights requires God's assistance. This is manifested through the use of expressions as:

9. ولا قوة الا بالله.

9. And there is no power but in God.

Some of the Islamic rituals referred to here are: prayer, fasting, pilgrimage, charity, and offering. These deeds are not the only ones denoted by Imam Al-Sajjad (p.b.u.h.). As it is stated in the preface, these constitute just part of human's deeds and he says after enumerating them

These deeds are given rights and stressed in this text since five out of fifty rights are dedicated to them in addition to the generalization of all other deeds. As it is stated earlier, God is the source of legislation. Al-Imam mentions these religious rituals which are asserted earlier by God in the Holy Quran as obligations. In addition, man is given good news of God's rewarding him in case he preserves these rights faithfully.

Another indication of the religious dimension of RH is Al-Sajjad's (p.b.u.h.) embodiment of Quranic verses and Prophetic traditions. These instances have been either explicit or implicit. Explicit and implicit references of this type are examples of manifest and constitutive intertextuality which are dealt with earlier (cf. 4.3.2.2). The following example is from the right of the associate in which Al Imam refers to one of Prophet Mohammed's traditions in this respect:

10. "غبن المسترسل ربا"

10. Cheating the intimate ones is like usury.

5.3.2 Political Dimension

In this text, Al Imam has not restricted himself to the religious side of rights or to his duty as a religious man since he has tackled rights from many other perspectives. One of these perspectives has been the political one. Being highly qualified as a religious leader, he has advised people, through mentioning rights of those who possess authority and those who are subjected to them, to the best way of treating the subjects by the possessors of authority and vice versa. The following example is from the right of the possessor of authority:

11. وَأَنْ تُخْلِصَ لَهُ فِي النَّصِيحَةِ وَأَنْ لَا تُمَاجِكُهُ وَقَدْ بَسِطَتْ يَدُهُ عَلَيْكَ فَتَكُونَ سَبَبَ هَلَاكِ نَفْسِكَ وَهَلَاكِهِ. وَتَذَلُّ وَتَلَطُّفٌ لِأَعْطَانِهِ مِنَ الرِّضَا مَا يَكْفِيهِ عَنْكَ وَلَا يَضُرُّ بَدِينَكَ.

11. And you should sincerely provide him with your advice. And you should not quarrel with him while he has full dominance over you, for thereby you cause your own destruction and his, too. And you should be humble and courteous for his gifts to attain his satisfaction with you, so that he will not harm your religion.

This right is derived partially from Al-Ashter's Epistle or Imam Ali's letter to his ruler of Egypt. They are presented in a skilful balance even though they converse each other. The standards between the rights of leaders and subjects asserted here require from the leader not to humiliate his subjects who have pledged him allegiance to them nor that do the subjects exaggerate in disputing with their leader.

5.3.3 Moral Dimension

Rights of body organs are among the rights in which morality is clearly emphasised. Imam As-Sajjad gives instructions about the best way of using body organs effectively through utilising them to the benefit of humans and as God, Prophet Mohammed, and Imams have commanded them. These rights are seven; one of them is the right of the tongue which will be discussed here. The tongue is presented as a mirror or an evidence of the presence of understanding. In addition, man is demanded to cease using it in a wrong way by speaking abusive speech and to avoid over-talking. This, in fact, could be regarded to be taken from the following Prophet Mohammed's tradition:

"طُوبَى لِمَنْ أَمْسَكَ الْفُضْلَ مِنْ لِسَانِهِ وَأَطْلَقَ الْفُضْلَ مِنْ مَالِهِ."

"Blessed be the one who restrains his tongue from excessive speech and gives his excess wealth in charity to the needy."

The point that the wrong use of tongue could result in harms for others, which is mentioned in the preceding example, could have been obtained from Imam Ali's (p.b.u.h.) saying in which he describes the tongue as a beast that if given freedom would rise an injury.

Morality is taught as well by the Imam in many instances, for example when he initiates man to pardon the faults of children and many other rights, yet due to the limits of the study, they cannot be enumerated all.

5.3.4 Juristic Dimension

The juristic dimension of RH is conveyed through introducing the right of adversary, whether that of the claimed or the claiming. Yet, it has no reference to the judge or the law. Rather, it is presented morally by instructing the claiming person in the one hand and the claimed in the other to the right way of treating his opponent. In other words, this right is just like other rights in the text under study represent 'man's' duty towards others rather than the duty of the government or the court towards him. In fact, the first thing that is stressed in both of these two rights, the claimed and the claiming adversary, is the trueness of the claim.

After verifying the validity of the claim, it is demanded from the claimed not to deny this claim and the claiming should speak to him kindly. On the other hand, even if the claim is proved to be vain, they are commanded to transact each other in a good manner. The claimed adversary's duty then is to treat the one who claims the adversary gently.

5.3.5 Social Dimension

Al-Sajjad in RH has classified society into four parts, namely, leaders, subjects, womb relations, and others. If counted, those rights comprise (35) out of the whole which is (50) rights making (70%). Even this number is not limited or indicative since in each of these parts there are some extensions. For example, in the preface, he mentions the rights of womb relations.

It is necessary to mention that RH has not limited the rights of relations of kin to those nearest people to man, his family members, including the mother, the father, the child, and the brother. Rather, it has added to them others who are outside the family but still related to him. They might include, the uncle, the aunt, the grandmother, the grandfather, the cousin, and so on. However, what is stressed here is the order of these rights. In other words, if the rights of mother, father, brother, and others have competed, the preceding one would be of the mother. This indicates the clear emphasis on society, first, the orderly and integral procedure of introducing rights, second, and the clear and enormous focus on the mother's rights for being antecedent of all social rights.

From another perspective, Al-Imam (p.b.u.h.), when mentioning the rights of those people, wants to stress their roles since each one occupies a role that is undeniable. For example, when one reserves the rights of others, this is necessary in strengthening his relationship with them. In addition, he is supposed to be treated similarly by them which is needed for the continuation of life in a good state due to man's continuous contact with others.

5.3.6 Economic Dimension

RH is concerned with the economic dimension of life. In this respect, Al-Sajjad (p.b.u.h.) along the whole text presents a number of instances of the right direction of spending money as well as a number of wrong directions to be avoided. Among the good ways of spending it is the one mentioned in the **right** of the master. In which he describes the master as being the main means of giving ownership to the slave. Thus, he should look after the needs of his master as long as he can.

Being not a correct affair to postpone the repayment of a debt, he instructs the indebted to avoid procrastinating and ask the indebted gently to give him extra time. On the other hand, there are cases in which man is warned from spending money haphazardly or from gaining it from a suspicious source as in the following example:

12. وأما حق المال، فأن لا تأخذه إلا من حله ولا تنفقه إلا في حله، ولا تحرفه عن مواضعه، ولا تصرفه عن حقائقه، ولا تجعله إذا كان من الله إلا إليه وسببا إلى الله.

12. And the right of your property is that you should not attain it except by legitimate means and you should only spend it for legitimate causes. You should not spend it improperly, you should not use it wrongfully, and you should not use what is from God in ways other than in His way and make it as a means to approach God.

5.3.7 Individualism versus Collectivism

In Islam, individuals are viewed in a total context that is through considering their relationship with God and God's creatures. As such, individualism is devalued while groups of whole societies are given much value. This does not mean to devalue the individual himself, on the contrary, he is considered as the first brick of society. Consequently, collectivism is asserted and called for in this text through presenting

rights of others, generally speaking, and specifically throughout including rights of: him who seeks your advice, adviser, him who seeks your counsel, and the counsellor. Giving and accepting advices are concentrated upon by Al-Sajjad (p.b.u.h.) as they strengthen relations among people and due to the fallible nature of humans which needs to be remedied by such an action.

5.3.8 Rights versus Duties

Although this text carries the title "Risalat Al Huquq" or if translated "Treatise on Rights" yet it is built upon a collection of duties upon man. That is why the one addressed in each right is not the possessor of that right, rather, he is its giver. It is so because if observed, each right has two members, one is the possessor and another is the giver. Both are human, except in the case of the rights of God, the self, and deeds.

In addition, this relationship, the one between the possessors and givers of rights, is interchangeable. In other words, in one case the son is addressed as the giver or the preserver of his parents' rights whereas in another case they are considered as the preserver of his right. Similarly, the rights of leaders, for example, are the duties of subjects and vice versa and so on.

6. Conclusions

The results reached to in the study are as follows:

1. The first hypothesis which states that "the linguistic representation reveals the constituting ideology of RH" has been verified since the classification scheme of the RH is mostly religious. As found in the analysis of the vocabulary of RH, religious expressions including mentions to Allah, direct as well as indirect allusions to Quranic verses and Prophet Mohammed's traditions, and references to religious deeds prevail.
2. Furthermore, the transitivity analysis of the text show that 'man' has been treated as an effective part in society as he is given the primacy in being a direct actor of almost half of the processes appointed to him.
3. The modality illustrates how the dominating meaning conveyed has been that of obligation due to the enlightening character of RH.
4. RH carries a more efficacious purpose by highlighting the right way of behaving and shedding light on man's pros and cons of rights and duties.
5. The texts referred to in RH are primarily interested in discussing rights including The Holy Quran, Prophet Mohammed's traditions, and Imam Ali's sayings.
6. RH is based upon an educational and psychological approach that enables the receiver to know the exhaustive unity of the topic; then, he speculates the partial details one by one.
7. The overall schema of RH is generally seen as being constituted of three major parts, namely, a preface or an introduction, the body including the fifty rights introduced, and a concluding remark. This form simplifies the content of the text.
8. The types of SAs used in RH are directive with four of its representations as well as declarative, representative, and expressive in addition to some auxiliary SAs including: explanation, justification, condition, and addition which are used to work subsidiary to main SAs.
9. Finally, concerning the last hypothesis that "RH's ideology is multidimensional attentive to moral, social, and a collection of other considerations" has been proved since its interests has not been limited to merely political or religious considerations. Rather, it has been directed to involve many concerns that gives it a

ramous nature paying attention to religious, political, moral, social, juristic, and economic dimensions of man's life.

10. Another characteristic of the ideology of RH is its configuration of man as a member of a society rather than considering him as an isolated person. Solitude here is clearly avoided in presenting rights as it leads to some feeling of meanness and gives priority to individuality.

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Holy Quran

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